

BEFORE THE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. RG GB DLLBU

STIPULATION AND ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS AGAINST THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO
OF YANCEY E. STOCKWELL, M.ED., LPC, LICENSE NO. 17

Respondent,

IT IS HEREBY STIPULATED and agreed by and between the Board of Licensed Professional Counselor Examiners ("Board") and Yancey E. Stockwell, M.Ed., LPC ("respondent"), as follows:

1. The Board has jurisdiction over the person of respondent and the subject matter set forth in this stipulation and order.

2. The State Board of Licensed Professional Counselor Examiners granted respondent a license to practice as a licensed professional counselor in Colorado on June 23, 1989. Respondent was issued license number 17.

3. Respondent was practicing psychotherapy in the state of Colorado as provided in C.R.S. §12-43-201(9). Respondent practiced psychotherapy in the case involved in this proceeding.

4. On or about September 11, 1998 the Board received a complaint against respondent alleging practice below generally accepted standards of practice.

5. Following an investigation of the complaint the Board determined that reasonable grounds existed to refer this matter to its legal counsel, the Colorado Attorney General, for disciplinary action regarding respondent's license to practice professional counseling and practice of psychotherapy in the State of Colorado.

6. Respondent understands that she has the right to a hearing with respect to the complaint filed against her. Respondent further understands and agrees that, by voluntarily stipulating to this stipulation and order, she waives her right to a hearing; relieves the Board of its burden of proving a violation of the Colorado Mental Health Statute;

gives up her right to present a defense by oral and documentary evidence; and gives up her right to cross-examine witnesses. Respondent understands that she has the right to appeal the Board's final order to the Court of Appeals. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to appeal or otherwise contest the validity of the final Board order entered pursuant to this stipulation.

7. Respondent agrees that she freely and voluntarily enters into this agreement including practice evaluation, practice monitoring, mental and physical evaluation, therapy (if appropriate), and professional education. Respondent recognizes that the complaint in this matter alleges serious misconduct and she acknowledges the serious nature of this case and the Board's concerns in this matter.

8. Respondent is not currently practicing professional counseling and psychotherapy in Colorado. Should respondent seek to resume the practice of professional counseling and psychotherapy in Colorado she shall notify the Colorado Board of Licensed Professional Counselor Examiners and at that time comply with the terms of this stipulation and order.

9. The Board, by this stipulation and order, hereby orders that should respondent seek to resume the practice of professional counseling and psychotherapy she shall undergo a practice evaluation and a mental and physical evaluation. The practice evaluation shall involve all aspects of respondent's proposed practice of professional counseling and psychotherapy and her qualifications, ability and competence to practice professional counseling and psychotherapy. The practice evaluation shall be conducted by a Board approved mental health professional ("practice evaluator") who will recommend whether respondent has the qualifications, current ability and competence to conduct her proposed practice of professional counseling and psychotherapy with skill and safety for her clients and in accordance with generally accepted standards of practice. Should the practice evaluator recommend that respondent has the qualifications, current ability, and competence to conduct her proposed practice of professional counseling and psychotherapy with skill and safety for her clients and in accordance with generally accepted standards of practice, and the Board accepts this recommendation, respondent may resume the practice of professional counseling once she has complied with the requirement for a mental and physical evaluation. Respondent's practice of professional counseling and psychotherapy shall be on probation, if the Board's decision is based on the evaluations, for a period to be determined by the Board. If

practice monitoring is required respondent may not resume the practice of professional counseling and psychotherapy until she has a Board-approved mental health professional who shall monitor her practice of professional counseling and psychotherapy ("practice monitor"). If therapy is required respondent may not resume the practice of professional counseling and psychotherapy until she has a Board-approved mental health provider who provides therapy ("therapist"). During the period of probation respondent can practice professional counseling and psychotherapy only if she complies with all conditions of the probation.

10. Should the practice evaluator recommends that respondent can not practice professional counseling and psychotherapy in accordance with generally accepted standards of practice and with skill and safety for her clients, or does not have the appropriate qualifications, current ability, or competence for her proposed practice of professional counseling and psychotherapy, and the Board accepts this recommendation, respondent shall not resume the practice of professional counseling and psychotherapy or any portion of her proposed practice of professional counseling and psychotherapy that she is found not qualified or competent to conduct until such time as the Board determines she is qualified and competent to practice professional counseling and psychotherapy or any portion of her practice that she is found not qualified or competent to conduct. Based on the findings and recommendations of the practice evaluator, the Board shall determine necessary actions that respondent must take and conditions she must meet so that she may become qualified and competent to safely practice professional counseling and psychotherapy or any portion of her practice she is found not qualified or competent to conduct. Once respondent satisfies the Board that she has taken the appropriate actions and met the conditions so that she is qualified and competent to safely practice professional counseling and psychotherapy or any portion of her proposed practice she was found not qualified or competent to conduct, she may resume the full practice of professional counseling and psychotherapy. Respondent's practice of professional counseling and psychotherapy shall be on probation, if the Board deems it appropriate based on the evaluations, for a period to be determined by the Board. If practice monitoring is required respondent may not resume the practice of professional counseling and psychotherapy until she has a Board-approved practice monitor. If therapy is required respondent may not resume the practice of professional counseling and psychotherapy until she has a Board-approved therapist. During the period of probation respondent can practice professional counseling and psychotherapy only if she complies with all conditions of the probation.

11. Prior to resuming the practice of professional counseling and psychotherapy respondent shall undergo a mental and physical evaluation. Respondent shall be examined by a Board-approved mental health provider ("therapy evaluator") to determine whether she can practice professional counseling and psychotherapy with skill and safety for her clients; and whether she should undergo therapy as part of her probation. The therapy evaluator will be provided the Board's file and pertinent information on this case. Respondent agrees to provide the therapy evaluator with any medical or psychological information requested by the therapy evaluator as part of the evaluation. The physical evaluation may be completed by respondent providing a report from her physician, unless the Board requests additional information. The therapy evaluator shall provide a written report to the Board setting forth the nature of the evaluation conducted with findings, and recommendations on whether respondent should undergo therapy as part of her probation and if she can practice professional counseling and psychotherapy with skill and safety for her clients. Should the therapy evaluator determine that respondent can not practice professional counseling and psychotherapy with skill and safety for her clients, and the Board accepts this finding, respondent shall not resume the practice of professional counseling and psychotherapy until such time as she is re-evaluated and found capable of practicing professional counseling and psychotherapy with skill and safety for her clients. Once it is determined, based on a report from the therapy evaluator that respondent can practice professional counseling and psychotherapy with skill and safety for her clients; and she has fully complied with the practice evaluation requirements and physical evaluation requirement, she may resume the practice of professional counseling and psychotherapy. Respondent's practice of professional counseling and psychotherapy shall be on probation, if the Board deems it appropriate based on the evaluations, for a period to be determined by the Board. Should the therapy evaluator not recommend therapy, and the Board accepts this recommendation, the provisions of paragraph 12f below will not apply. Should the therapy evaluator recommend therapy, and the Board accepts this recommendation, respondent shall undergo therapy as provided in paragraph 12f below as a term of her probation. If practice monitoring is required respondent may not resume the practice of professional counseling and psychotherapy until she has a Board-approved practice monitor. If therapy is required respondent may not resume the practice of professional counseling and psychotherapy until she has a Board-approved therapist.

12. The conditions of respondent's probation are:

a. Respondent will strictly observe the prohibitions set forth in C.R.S. §12-43-704(1) and assure that she does not engage in any activities that are prohibited activities or fall below generally accepted standards of practice.

b. Respondent's practice of professional counseling and psychotherapy shall be monitored a Board-approved mental health provider ("practice monitor") who monitors respondent's practice of professional counseling and psychotherapy and reports in writing to the Board in accordance with this order.

(i) Respondent's practice monitor shall monitor all of respondent's cases. The practice monitoring shall consist of individual face-to-face contact between respondent and her practice monitor that occurs for one hour or such longer time as the practice monitor deems necessary for every 20 hours of client contact, but at least once every two months. During practice monitoring, respondent and her practice monitor must review and discuss each of respondent's active cases at least once every three months to allow the practice monitor to determine whether respondent is practicing professional counseling and psychotherapy in accordance with generally-accepted standards of practice and with skill and safety for her clients.

(ii) The practice monitor is authorized to examine and shall examine such client records and case files maintained by respondent as the practice monitor or the Board deems appropriate and necessary to determine whether respondent is practicing professional counseling and psychotherapy in accordance with generally-accepted standards of practice and with skill and safety for her clients.

(iii) The practice monitor shall report the results of monitoring to the Board in writing and send a copy of each report to the respondent and the therapist (if applicable). The practice monitor must submit her/his first report on the fifth day of the month following the first full month of practice monitoring. The practice monitor shall submit subsequent reports on the fifth day of each third month thereafter (i.e. on a quarterly basis) for the remainder of the probation.

(iv) After the Board's written approval of the practice monitor, respondent and the practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of that written contract to the Board as part of her/his first report to the Board. The contract must contain a provision stating that the practice monitor has received the respondent's client records and case files, has read these documents, and understands the duties and responsibilities

s/he is undertaking as respondent's practice monitor. The practice monitor shall assure that written notification is provided to each client informing the client of the name address and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure form.

(v) If, at any time, the practice monitor is of the opinion that respondent is not practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice or has a condition which renders her unable to treat clients with skill and safety or which may endanger the health or safety of persons under her care, the practice monitor shall report her/his opinion and the basis for that opinion to the Board. The practice monitor shall make that report in writing and within 48 hours of forming her/his opinion. The practice monitor shall send a copy of that report to the respondent and the therapist (if applicable) when he/she sends the report to the Board. Once such a report is submitted respondent shall immediately cease the practice of professional counseling and psychotherapy.

(vi) Either respondent or her practice monitor may terminate the monitoring relationship on written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. In the event respondent does not have another Board-approved practice monitor prior to the termination, respondent shall cease the practice of professional counseling and psychotherapy until she obtains another Board-approved practice monitor. The new practice monitor's responsibilities shall be in accordance with this stipulation and order.

(vii) During the period of probation respondent shall not engage in the practice of professional counseling and psychotherapy without an approved practice monitor in place.

e. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, as defined in C.R.S. §12-43-201(9), or other mental health services to clients unless such supervision or consultation is monitored by respondent's practice monitor in accordance with the provisions of paragraph 12d.

f. Should the Board determine that respondent should undergo therapy as a term of her probation, based on the recommendation of the mental status evaluator, respondent shall undergo therapy as a "therapist". Should the Board determine that respondent should undergo therapy as a term of her probation then the provisions of this paragraph 12f shall not

apply. Should therapy be required, the therapist shall conduct therapy and report to the Board in writing as follows:

(i) The psychotherapy must consist of individual or group therapy sessions, or both, that occur in a frequency to be determined by the therapist, but in no event less frequently than once every two weeks, unless otherwise approved by the Board based on recommendations of the therapist.

(ii) The therapist shall report to the Board in writing both the progress of the therapy and whether respondent is able to practice professional counseling and psychotherapy with reasonable skill and safety for her clients, and must send a copy of each report to the practice monitor and respondent. The therapist must submit her/his first report by the fifth day of the month following the first full month of the therapy. The therapist shall submit subsequent reports by the fifth day of every third month thereafter (i.e., on a quarterly basis) for the first period of probation.

(iii) In the first report, the therapist shall state that s/he has received and read a copy of this stipulation and order, the Board's file and the mental status evaluator's report, and that s/he understands the duties and responsibilities s/he is undertaking as respondent's therapist.

(iv) If, at any time, the therapist is of the opinion that respondent has a condition which renders her unable to treat clients with reasonable skill and safety or which may endanger the health or safety of persons under her care, the therapist shall report such opinion and the reasons for that opinion to the Board. The therapist shall make that report, in writing, within 48 hours of forming her/his opinion. The therapist shall send a copy of such report to the practice monitor and respondent when s/he sends the report to the Board. Upon submission of such a report respondent shall immediately cease the practice of professional counseling and psychotherapy.

(v) Either respondent or her therapist may terminate the therapeutic relationship on written notice to the other and the Board no less than 60 days before the date of termination. The notice shall state the reason for the termination. In the event respondent does not have another Board-approved therapist prior to the termination, respondent shall cease the practice professional counseling and psychotherapy until she has another Board-approved therapist in place. The subsequent therapist shall conduct therapy with respondent and report to the Board in accordance with this stipulation and order.

(vi) Respondent cannot practice professional counseling and psychotherapy during the period of probation if she is not undergoing therapy in accordance with this stipulation and order, unless otherwise provided by the Board based on the recommendations of the therapist.

g. Respondent shall complete a minimum of twenty (20) hours of Board-approved professional continuing education during each year of probation. This education shall be in the areas of boundary issues and other legal/ethical issues related to the practice of professional counseling and psychotherapy. Completion of an approved jurisprudence workshop shall be required as part of this education requirement.

h. Respondent must take reasonable steps to assure that her practice monitor and therapist (if applicable) provide required reports to the Board.

i. Respondent, not the Board, shall be responsible for any costs and/or expenses incurred for practice evaluation, mental and physical evaluation, practice monitoring, therapy, education, or any other action required in fulfilling the requirements of this order.

j. Respondent must provide written notification to every professional counseling and psychotherapy client who she provides services to while this order is in effect, informing the client of the name, address, and telephone number of her supervisor or practice monitor. Such notice may be provided in a mandatory disclosure statement.

k. During the pendency of this order respondent agrees that she will provide permission to and allow her practice evaluator, mental and physical evaluators, practice monitor, or therapist to provide medical or psychological information or records to the Board in the event the practice evaluator, mental and physical evaluators, practice monitor, or therapist determines that respondent is not able to practice professional counseling and psychotherapy in accordance with generally accepted standards of practice or has a condition which renders her unable to treat clients with skill and safety or which may endanger the health or safety of persons under her care. As part of this stipulation and order respondent explicitly waives her right to maintain confidentiality of medical and psychological records and information provided to her practice evaluator, mental and physical evaluators, practice monitor, or therapist if the practice evaluator, mental and physical evaluators, practice monitor, or therapist determines that respondent is not able to practice professional counseling and psychotherapy in accordance with.

generally accepted standards of practice or has any condition which renders her unable to treat clients with skill and safety or which may endanger the health or safety of persons under her care.

13. All time periods and obligations regarding practice monitoring or therapy (if applicable) stated in this order run only while respondent is engaged in the practice of professional counseling and psychotherapy in Colorado under the monitoring of a Board-approved practice monitor and while respondent is engaging in any required therapy. They are tolled and suspended at all other times.

14. If, after resuming the practice of professional counseling and psychotherapy, respondent again discontinues the practice of professional counseling and psychotherapy in Colorado, she shall notify the Board, in writing, within thirty (30) days of ceasing practice. This notification shall include the date she ceased practicing and her new address if she has moved.

15. In the event respondent resumes her practice of professional counseling and psychotherapy in Colorado after stopping practice as described in paragraph 14, she shall provide written notification to the Board prior to resumption of her practice of professional counseling and psychotherapy in Colorado. Such notification shall include her address and the date on which she intends to resume practice.

16. As used in this stipulation and order, the terms "professional counseling", "practice of professional counseling", "professional counseling practice", and "engaged in the practice of professional counseling" shall have the same meaning and scope as the term "professional counseling" as defined in C.R.S. §12-43-601(5)(a). The terms "psychotherapy", "practice of psychotherapy", "psychotherapy practice", and "engaged in the practice of psychotherapy" shall have the same meaning and scope as the term "psychotherapy" as defined in C.R.S. §12-43-201(9).

17. No agreement, understanding, representation, or interpretation not contained in this order may be used to vary or to contradict its terms.

18. Each party shall bear its own costs, shall pay its own witness fees, and shall pay its own attorney fees.

19. Each provision of this order is separate. In the event of litigation involving compliance with the terms of this order, the issues will be restricted to those raised by the

interested parties; the resolution of those issues will affect only the pertinent parts of the order; and the parties will be obligated by the judicially-construed parts of the order as if they were part of the original order.

20. This stipulation and order shall take effect on acceptance and signature by the Board.

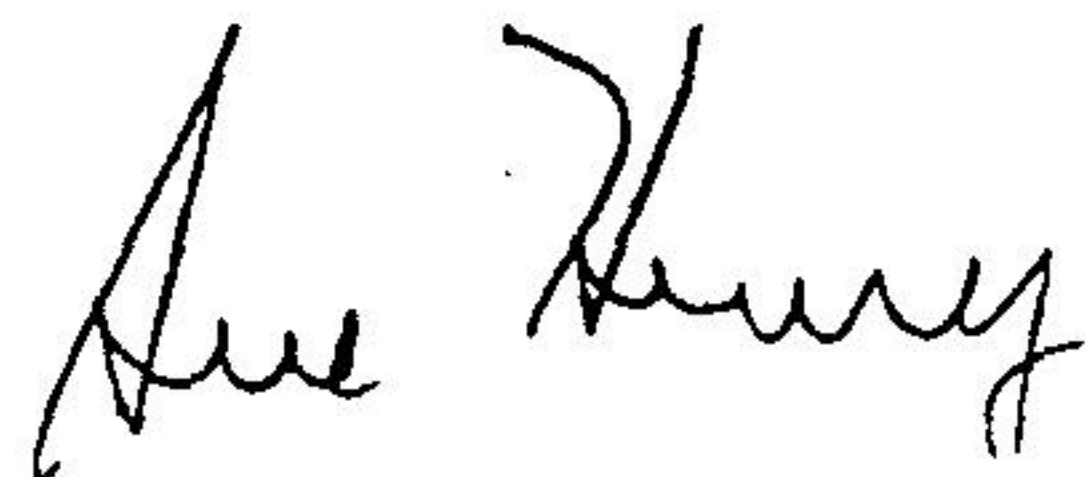
21. This stipulation and order is a public record.


YANCEY E. STOCKWELL, M.ED., LPC
Respondent

DATED: 8-11-99

ACCEPTED, SIGNED, AND ORDERED this 1ST day of September,
1999.

STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS


SUE HENRY
CHAIR

APPROVED AS TO FORM

FOR THE RESPONDENT:

William C. Ritter ⁸⁻¹⁷⁻⁹⁹ (11907)
WILLIAM C. RITTER

Attorney for Respondent
Yancey Stockwell, M.Ed., LPC

Suite 400
2696 S. Colorado Boulevard
Denver, Colorado 80222
Telephone: 303/692-0900

FOR THE ATTORNEY GENERAL:

James F. Carr
JAMES F. CARR, 9343
Assistant Attorney General
Business and Licensing Section

Attorneys for the State Board
of Licensed Professional
Counselor Examiners

1525 Sherman Street, 5th Floor
Denver, Colorado 80203
Telephone: 303/866-5283
AG Alpha No. RG GB DLLBU
AG File No. RLJC9134